

Raine Industries And Engineering ... vs Oxyzo Financial Services Pvt Ltd on 19 March, 2025

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. 796/2023
RAINE INDUSTRIES AND ENGINEERING PRIVATE
& ORS.

Through: None.

versus

OXYZO FINANCIAL SERVICES PVT LTD

Through: Mr. Kumar Shashw

CORAM:

HON'BLE MR. JUSTICE GIRISH KATHPALIA
ORDER

% 19.03.2025 [Physical Hearing/Hybrid Hearing (as per request)] CRL.M.C. 796/2023 & CRL.M.A. 3032/2023 (stay) The petitioners have sought quashing of summoning order in the criminal complaint case under Section 138 Negotiable Instruments Act. As reflected from order dated 13.02.2023 of predecessor bench, petitioner claims that since its bank account was declared NPA, which led to bouncing of the cheque in question, proceedings under Section 138 Negotiable Instruments Act are not maintainable. Although notice was issued on this petition, but the predecessor bench clarified that there is no stay on the trial court proceedings. There have been multiple defaults in appearance on behalf of petitioners. Since none appears for petitioners today also, the petition is dismissed in default. Pending applications stand disposed of.

GIRISH KATHPALIA, J MARCH 19, 2025/rk Click here to check corrigendum, if any This is a digitally signed order.

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